

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: June 1, 2026 at 1:30 pm

Rulings Posted: 5/29/26 at 3 pm

#	Case Name	Tentative
301	<i>Martin vs. In-N-Out Burgers</i>	The Motion for Leave to File First Amended Answer to Plaintiffs’ Complaint, filed on 2/20/26 by defendant In-N-Out Burger (INO) is GRANTED. The Motion complies with C.R.C. 3.1324, and is unopposed. INO’s Request for Judicial Notice (ROA 327), is GRANTED under Evidence Code §452(d), as to the existence of those records. INO is to file and serve its First Amended Answer no later than 6/10/26 and give notice of this ruling.

302	<i>Hull vs. City of Orange</i>	The Motion for Summary Judgment filed on 1/8/26 by Defendant City of Orange (City), which seeks summary judgment on the Complaint filed on 6/25/24 by Plaintiff Brandon Jacob Hull (Plaintiff) is GRANTED. City has met its burden to show that it is entitled to judgment as a matter of law on the sole cause of action asserted by Plaintiff against City, for dangerous condition of public property. In response, Plaintiff has failed to show a triable issue of material fact as to either that cause of action or the proffered defense thereto. City has shown that it did not have notice of a dangerous condition at the subject Intersection prior to the accident. It is undisputed that there had been no reported accidents there in the past decade. (UF 6.) Plaintiff argues that City had been on notice of visibility issues based on complaints in 2005 and 2007. (AF 23, 24, 32, 36, 73.) But a single prior accident does not establish notice that an intersection was unreasonably dangerous. (<i>Mixon v. Pacific Gas & Electric Co.</i> (2012) 207 Cal.App.4th 124, 138.) Similarly, one complaint about safety concerns in 2007 does not suffice. (<i>Id.</i>) City has also shown that in response to the 2005 complaint, it extended the red zone to improve visibility – and thereafter, had no further complaints about that intersection. (UF 6-9.) Plaintiff’s Evidentiary Objections, filed as ROA 125, are OVERRULED. City’s Evidentiary Objections, filed as ROA 132, are SUSTAINED on Obj. Nos. 2 and 3 [hearsay] but otherwise OVERRULED. City shall give notice.
303	<i>United Auto Credit Corporation vs.</i>	Plaintiff United Auto Credit Corporation’s motion to enforce settlement is GRANTED. (See Code of Civ. Proc. § 664.6.)